

Tentative Rulings

July 22, 2026

Department S-17

Judge Joseph Ortiz

Tentative Rulings for Department S-17 are posted on the court's website (<https://www.sb-court.org/divisions/civil/civil-tentative-rulings>) at 3:00 p.m. or at 7:00 p.m. the court day before the hearing. If no tentative ruling is posted at 3:00 p.m., please check again after 7:00 p.m.

Unless you wish to submit on the tentative ruling, you must appear for the hearing either in person, CourtCall (888-882-6878 or www.courtcall.com), or by ZOOM. Failure to appear is deemed a waiver of oral argument. If you wish to submit to the tentative, please call the Judicial Assistant at (909) 708-8715 in advance of the hearing. If all parties submit on a tentative ruling, it will become final. The tentative ruling may seek input on particular issues and direct appearance. If so directed, attendance at the hearing is mandatory. The party prevailing on a motion or other hearing shall serve written notice of the court's ruling unless all parties waive notice of the ruling.

ATTENTION: Since January 9, 2023, the court no longer provides an official Court Reporter to transcribe proceedings. Parties who wish to have a transcript must retain their own private reporter and must submit a "Stipulation and Order to Use Certified Shorthand Reporter." Parties who do not retain their own reporter have waived the right to one.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

12. *North Mills Equip. Finance LLC v. Taomore Supply Chain LTD, et al*, Case No. CIVSB2400967
Motion to be Relieved as Counsel for Cross-Defendant 1st Mars Logistics
Motion to be Relieved as Counsel for Cross-Defendant Li
7/22/26, 9:00 a.m., Dept. S-17

The Court would **GRANT** these unopposed motion by the law firm of to be relieved as counsel for.

Here, the Bowse Davis Huffine Chung & Hull law firm seeks to be relieved as counsel for Cross-Defendants 1st Mars Logistics and Li. The motions are supported by declarations establishing good cause pursuant to rule 1.16(b) of the Rules of Court. The Court is inclined to **GRANT** these unopposed motions. Relief is not final until the ruling is served on Plaintiff and a filed proof of service demonstrating that service.

Cross-Defendants are ordered to appear at the next hearing. As a corporation, Defendant 1st Mars will be required to have representation, and the Court will inquire regarding Cross-Defendants' plans regarding representation and prosecution of this case.

9. *South Colton Families First, et al, v. City of Colton, et al*, Case No. CIVSB2317228
Petitioners' Motion for Reasonable Attorneys' Fees
7/22/26, 9:00 a.m., Dept. S-17

Tentative Ruling

The Court would **GRANT** the motion, in part, and award a reduced fee award in the amount of \$201,289.02.

Case Summary

This is California Environmental Quality Act (CEQA) litigation. At the heart of the matter was the City's approval of the Agua Mansa Logistic Center (Project), involving the construction of two warehouses. The Real Parties in Interest were those that submitted the Project applications.

In May 2023, the Planning Commission Resolutions found the CEQA Guidelines section 15183 exemption applied to the Project. It found that the Project was in conformance with the previously adopted General Plan EIR (or GPEIR). A finding was also made that all environmental impacts of the Project were either less than significant or mitigated to a level of less than significant under outlined mitigation measures. Petitioners contended that the Guidelines section 15183 exemption did not apply to the Project because of issues related to the Project's greenhouse gas emissions, air quality impacts, and historic resources not being protected.